



CHAPTER c.

An Act to authorise the closing and sale of certain churches in the city of Liverpool and the borough of Wigan and the sale of certain vicarages or houses of residence the extinction of certain ecclesiastical districts and parishes the merger thereof in other districts and parishes and the conversion of certain ecclesiastical districts into separate ecclesiastical parishes in the said city and for other purposes. [22nd July 1904.] A.D. 1904.

WHEREAS by the conversion of dwelling-houses into shops and warehouses and otherwise the resident population of certain parishes and ecclesiastical districts in the city of Liverpool has greatly diminished:

And whereas the population of other parishes in and near the city has greatly increased and is insufficiently accommodated by the existing churches:

And whereas the parish of Liverpool is very large and populous and has been by divers Acts of Parliament and instruments made thereunder divided into parishes and districts for ecclesiastical purposes but many of such districts are not separate parishes for ecclesiastical purposes:

And whereas certain Commissioners were on the twenty-third day of May one thousand nine hundred and one appointed by the Lord Bishop of Liverpool by commission under his episcopal seal to consider and inquire into (amongst others) the matters herein-before recited and to recommend such measures as to them might seem proper to be taken in relation thereto:

And whereas on the twenty-ninth day of December one thousand nine hundred and two the said Commissioners reported

A.D. 1904. — to the said Lord Bishop that they had given long and careful consideration to the matters committed to them for inquiry and laid before the said Lord Bishop certain recommendations :

And whereas the said Commissioners recommended amongst other things that the churches of All Souls Saint Mark Saint Thomas and Saint Titus in the said city should be removed and sold and the parishes and districts appertaining thereto united with certain adjacent parishes and districts and that the vicarages or houses of residence of All Souls and Saint Titus should be sold and that all ecclesiastical districts in the said city not being separate parishes for ecclesiastical purposes should so far as practicable be erected into such parishes :

And whereas it is expedient that effect be given to the said recommendations by the removal and sale of the churches and houses aforesaid and the merger of the districts and parishes of which the said churches are the churches in such other districts and parishes respectively as by this Act provided and the constitution of the districts of Christ Church Saint Anne Richmond Saint Bride otherwise Saint Bridgett Saint Catherine Saint Columba Saint Luke Saint Martin Saint Mary Magdalene Saint Matthew Saint Matthias Saint Michael Saint Saviour and Saint Stephen in the said city as separate parishes for ecclesiastical purposes :

And whereas the several Acts and parts of Acts relating to the said districts or to some of them and specified in the Second Schedule to this Act will become subject as herein-after mentioned unnecessary and obsolete and it is expedient that they be repealed subject to the provisions herein-after contained :

And whereas it is necessary for the purposes aforesaid that trustees be appointed with power to sell the churches and houses aforesaid and receive and apply the proceeds of such sales :

And whereas it is expedient that new parishes be formed in and near the city of Liverpool and the proceeds of the sales of churches aforesaid applied towards the provision of churches therein and that the proceeds of the sales of the vicarages or houses of residence aforesaid be applied towards the provision of other parsonages in or near the said city :

And whereas the existing churches of the parishes or districts of Saint Columba and Saint Bartholomew in the said city and the existing church of the parish of Saint George in the borough of Wigan are inconveniently situated and the said

Commissioners recommended that they be removed and sold and new churches on different sites substituted therefor and it is expedient to make provision to that end: A.D. 1904.

And whereas the church of Saint Mary Edgehill in the said city has no district assigned to it and a district may conveniently be assigned to it and the said Commissioners have recommended accordingly:

And whereas it is expedient that part of an Act (in this Act referred to as "the Edgehill Church Act 1814") passed in the fifty-fourth year of His late Majesty King George the Third intituled "An Act to enable Edward Mason of Edgehill" in the parish of Walton in the county of Lancaster Esquire "to appoint a curate to the new church or chapel of Edgehill" and for other purposes therein mentioned" be repealed:

And whereas the incumbent of the church of Saint James Toxteth Park in the said city is or may be under a liability to pay certain fees arising from the performance of certain offices in the said church to the rector of the parish of Walton-on-the-Hill but such liability (if any) has not been for many years enforced and it is expedient that it be determined and the said Commissioners have recommended accordingly:

And whereas it is expedient that the construction of section 9 of the Liverpool City Churches Act 1897 be explained in manner by this Act provided:

And whereas it is expedient that the district attached to the church of Saint David in the said city be united with the adjacent parish of Saint Simon and the said Commissioners have so recommended:

And whereas there are many persons in the said city who speak the Welsh language and by an Act passed in the seventh year of His late Majesty King George the Fourth and intituled "An Act for erecting and endowing a Church in the Parish of Liverpool in the County Palatine of Lancaster to be called "the Church of St. David" (in this Act referred to as "the Saint David's Church Act 1826") provision was made for divine service in the Welsh language in the said church of Saint David and it is expedient that such provision be continued in manner herein-after appearing notwithstanding the union of the district attached to the said church with the said parish of Saint Simon:

And whereas by a codicil (dated the twenty-seventh day of August one thousand eight hundred and fifty-five) to the will

A.D. 1904. of Harmood Banner of Liverpool Esquire the advowson or perpetual right of patronage and presentation of or to the church or chapel of the Holy Innocents in the said city was given and devised unto and to the use of the Lord Bishop of Chester and his successors for the time being upon certain supposed trusts therein appearing :

And whereas the said Harmood Banner died on the twenty-first day of April one thousand eight hundred and sixty-five and his will and the said codicil were duly proved on the fifth day of May one thousand eight hundred and sixty-five :

And whereas the said church or chapel is in the diocese of Liverpool :

And whereas by a scheme duly made in pursuance of the Bishoprics Act 1878 by the Ecclesiastical Commissioners on the twenty-fourth day of June one thousand eight hundred and eighty the patronage of every ecclesiastical benefice being within the diocese of Liverpool of which benefice the patronage was then vested for any estate or interest in the Bishop of Chester was transferred to and vested in the Bishop of Liverpool and his successors :

And whereas Her late Majesty Queen Victoria by Order in Council did on the thirty-first day of July one thousand eight hundred and eighty ratify the said scheme and did order and direct that the same and every part thereof should be effectual in law immediately from and after the time when the said Order should have been duly published in the London Gazette pursuant to the Bishoprics Act 1878 :

And whereas the said Order was duly so published on the third day of August one thousand eight hundred and eighty :

And whereas the said supposed trusts are deemed to be invalid and without effect :

And whereas doubts have arisen as to the effect of the said codicil and whether the said advowson or right of patronage and presentation is legally vested in the Bishop of Liverpool and his successors and it is expedient that those doubts be removed and that it be declared that the said advowson or right of patronage and presentation is vested in the said Bishop and his successors in right of his See absolutely :

And whereas John Sutherland Harmood Banner the heir-at-law of the said Harmood Banner has consented to this Act :

And whereas the Lord Bishop of Liverpool the Ecclesiastical Commissioners Queen Anne's Bounty and the several incumbents and patrons affected by this Act have consented thereto : A.D. 1904.

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PRELIMINARY.

1. This Act may be cited as the Liverpool and Wigan Churches Act 1904. Short title.

2. In this Act unless the context otherwise requires—

Interpreta-
tion.

“The old churches” means the churches of All Souls Saint Mark Saint Thomas and Saint Titus in the city of Liverpool ;

“The conventional districts” means the ecclesiastical districts or reputed districts of Christ Church Saint Anne Richmond Saint Bride otherwise Saint Bridgett Saint Catherine Saint Columba Saint Luke Saint Martin Saint Mary Magdalene Saint Matthew Saint Matthias Saint Michael Saint Saviour and Saint Stephen in the city of Liverpool ;

“The city” means the city of Liverpool as its limits may be for the time being defined ;

“The Bishop” means the Lord Bishop of Liverpool for the time being ;

“The Commissioners” means the Ecclesiastical Commissioners ;

“The trustees” means the trustees of this Act.

TRUSTEES.

3.—(1) The following persons (that is to say) :—

The Venerable Thomas John Madden

The Reverend George Harford

The Reverend Joseph Rogerson Edmond Cotter Hodgins

The Reverend James Gerard Leigh

The Reverend John Thomas Mitchell

The Reverend George Hardwicke Spooner

Trustees for
purposes of
Act.

A.D. 1904.

The Reverend Percy Stewart
Charles John Bushell
Arthur Crosthwaite
Richard Dart
James Carlton Eckersley
George Deane Killey
William Seeds Patterson
John Cort Procter and
William Craigie Williams

shall be trustees for the execution of the powers and duties conferred and imposed on them by this Act by the name or style of "The Trustees of the Liverpool and Wigan Churches Act 1904."

(2) The trustees shall fill any vacancy occurring by death resignation or otherwise among the lay trustees by the appointment of a fit lay person and shall fill any vacancy similarly occurring among the trustees in holy orders by the appointment of a fit person in holy orders but the trustees may at all times act notwithstanding the existence of any vacancy or vacancies in their number unless reduced below seven in which case they shall not exercise any of the powers of this Act except that of appointing new trustees.

(3) Every trustee shall be a member of the Church of England and if he ceases to be such he shall cease to be a trustee.

(4) The trustees shall have an official seal and shall by standing order or byelaw provide for its custody and use Any deed to which the trustees are parties shall be well and sufficiently executed on behalf of the trustees if the seal be affixed thereto in the presence of two trustees testified by their signatures.

Meetings and
proceedings
of trustees.

4.—(1) Five trustees must be personally present to constitute a meeting of the trustees for the transaction of business.

(2) At their first meeting after the passing of this Act and at such time as they may determine in every subsequent year the trustees shall appoint one of their number to be chairman and another to be vice-chairman for the period of twelve months from the date of the meeting or such other period as they may determine.

(3) The chairman shall preside at all meetings of the trustees at which he is present.

(4) If at any meeting of the trustees the chairman be not present the vice-chairman shall take the chair but if there be no

vice-chairman or if the vice-chairman be not then present the trustees then present shall choose one of themselves to take the chair at that meeting. A.D. 1904.
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(5) The chairman or any three trustees may at any time summon a meeting of the trustees.

(6) Questions arising at a meeting of the trustees shall be decided by a majority of votes and in case of an equality of votes the trustee in the chair shall have a second or casting vote.

(7) Subject as aforesaid the trustees may meet together for the dispatch of business adjourn and otherwise regulate the proceedings of the trustees as the trustees from time to time think fit and may make standing orders or byelaws for the purpose.

SALE OF OLD CHURCHES AND VICARAGES.

5. On the passing of this Act the old churches and the ornaments fittings and furniture thereof (subject as herein-after mentioned) and the sites thereof including the vaults churchyards and other lands attached or belonging thereto as well as the vicarages or houses of residence of All Souls and Saint Titus together with the outbuildings gardens and premises thereto respectively belonging as the said churches houses lands and premises are respectively described in the First Schedule to this Act shall be respectively subject to an absolute power of sale to be exercised by the trustees as in this Act provided. Power of sale
of certain
churches and
vicarage
houses.

6.—(1) The old churches shall respectively be closed and disused for divine service at such times as may be fixed by the Bishop by order under his hand but so long as the person who is incumbent of any of the said churches at the time of the passing of this Act shall be incumbent thereof no such order shall be made in respect of such church without his written consent. Closing and
sale of cer-
tain churches.

(2) From and after the making of an order under this section for the closing and disuse of any of the old churches the trustees shall until the sale of the site thereof as herein-after mentioned have (subject as in this Act provided) all such rights of entry and control over the same and over all other things in connection therewith made by the immediately preceding section subject to a power of sale as if they were the owners thereof.

(3) As soon as conveniently may be after the making of an order under this section in the case of any one of the old churches the trustees shall sell that church or shall demolish the

[A.D. 1904. —] same and sell the materials thereof and shall sell the site thereof and the vaults churchyard and other land (if any) belonging thereto and the ornaments fittings and furniture thereof (subject as in this Act provided) either together or in lots and in such manner at such times and on such terms and conditions as they shall think fit freed and discharged from all ecclesiastical and other trusts uses purposes obligations disabilities and restrictions whatsoever and from all rights or interests of the owners of any seats or pews or of any other person and may and shall execute and do all assurances acts and things necessary or proper for effecting the purposes aforesaid :

Provided as follows :—

- (A) Within seven days from the making of any order under this section the trustees shall serve a copy thereof on the Corporation of Liverpool (herein-after called "the Corporation") by delivering the same to their town clerk and the Corporation shall at any time within three months after such service by notice in writing under the hand of their town clerk delivered or sent by registered post to the registrar of the consistory court of the diocese of Liverpool state whether or not the Corporation elects to purchase the site of any old church to which such order relates and the vaults churchyard and other land (if any) belonging thereto with or without such old church and the trustees shall sell to the Corporation the property (if any) which the Corporation shall so elect to purchase at such a price as would be paid therefor by an independent purchaser and such price failing agreement shall be fixed by arbitration under the Arbitration Act 1889 or any statutory modification thereof or substitution therefor for the time being subsisting and any property so purchased by the Corporation shall be vested in the Corporation freed and discharged from all ecclesiastical and other trusts uses purposes obligations disabilities and restrictions whatsoever and from all rights and interest of the owners of any seats or pews or of any other person and the trustees may and shall execute and do all assurances acts and things necessary or proper for effecting the purposes aforesaid :

If the Corporation shall elect to purchase the site of any old church without such church the trustees

shall at their own expense within six months after service by the Corporation of such notice as aforesaid demolish such church to the level of the ground and remove the materials thereof: A.D. 1904.

- (B) The trustees may postpone for so long as they may think fit the sale of the site of any church which shall have been sold or demolished in pursuance of this subsection and of any churchyard and land belonging to any such church or of any part of such site churchyard or land and until the sale thereof such site churchyard and land or such part thereof as shall be unsold shall be deemed to be a burial ground and the trustees shall be deemed to be the owners thereof within the meaning and for the purposes of section 5 of the Open Spaces Act 1887 and of so much of the Metropolitan Open Spaces Act 1881 as is made applicable by the said section. No such postponement shall prevent any sale of a church or the materials thereof from being a complete sale for the purposes of this Act.

(4) Every assurance of land executed by the trustees under this section shall be registered in the Episcopal Registry of the diocese of Liverpool and shall be effectual without the concurrence or consent of any other person.

7. Every receipt signed by the trustees or any three of them shall effectually discharge the purchaser of any land under the powers of this Act from the amount of money expressed in such receipt to have been received and from being answerable for or bound to see to the application thereof. Receipt of trustees.

8. Nothing in this Act shall authorise the sale by the trustees of any font holy table or church plate. The trustees shall remove from each of the old churches after the making of an order under this Act for the closing and disuse thereof and before the sale thereof the font holy table and plate thereof and shall dispose of the same as the Bishop may in writing direct. Such disposition shall be good and effectual in law. The trustees may if they think fit in lieu of selling any other ornaments fittings or furniture including stained or painted glass remove and dispose of the same in manner provided by this section as to font holy table and plate. Disposal of certain church ornaments and furniture.

9. All registers deeds records books and documents belonging to or kept in any one of the old churches shall after Disposal of registers and other documents.

A.D. 1904. — the making of an order under this Act for the closing and disuse thereof and before the sale thereof be removed by the trustees—

(A) in the case of the church of All Souls to the church of Saint Bartholomew in the city;

(B) in the cases of the churches of Saint Mark and Saint Thomas to the church of Saint Michael in the city;

(C) in the case of the church of Saint Titus to the church of Saint Alban Bevington in the city;

and shall be securely kept with the registers and other documents of the said parishes or churches respectively. Provided that one of the duplicate marriage registers current at each of the old churches at the time of the making of an order under this Act for the closing and disuse thereof shall be deposited with the district superintendent registrar as required in the case of filled register books by section 33 of the Births and Deaths Registration Act 1836.

Removal of
human re-
mains.

10.—(1) If and when the trustees shall sell any of the old churches or any lands belonging thereto they shall before the completion of the sale thereof remove or cause to be removed the remains of all deceased persons interred therein or in any vault attached or belonging thereto.

(2) Before proceeding to remove any such remains the trustees shall publish a notice for three successive days in two local newspapers circulating in the city to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of sub-sections (3) (4) (5) (6) and (7) of this section.

(3) Any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the said churches vaults or lands may give notice in writing to the trustees of his intention to undertake the removal of such remains and thereupon he shall be at liberty without any faculty for the purpose but subject as herein-after mentioned to any regulations made by the Bishop to cause such remains to be removed to and re-interred in any consecrated burial ground or cemetery in which burials may legally take place.

(4) If any person giving such notice as aforesaid shall fail to satisfy the trustees that he is such heir executor administrator or relative as he claims to be the question shall be determined

on the application of either party in a summary manner by the registrar of the consistory court of the diocese of Liverpool who shall have power to make an order specifying who shall remove the remains. A.D. 1904.
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(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one vault or grave the sum of ten pounds) shall be defrayed by the trustees such sum to be apportioned if necessary equally according to the number of remains in the vault or grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the trustees in respect of the remains in any vault or grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section and with any regulation of the Bishop the trustees may without any faculty for that purpose remove the remains of the deceased person and cause them to be interred in such other consecrated burial ground or cemetery in which burials may legally take place as the trustees think suitable for the purpose subject to the consent of the Bishop.

(7) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the trustees be removed and re-erected at the place of re-interment of such remains or at such place within the city as the Bishop may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the trustees.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the city.

11. From and after the making of an order under this Act for the closing and disuse of any one of the old churches the office of minister or incumbent of such church as well as every other office in connection with such church and the advowson or right of presentation or appointment thereto respectively shall cease and be extinguished. Provided that the person who was last minister or incumbent of any such church or his representatives as the case may be shall notwithstanding such cesser and extinction be liable in respect of dilapidations as upon the avoidance of a benefice and the trustees shall be entitled but not bound to recover and receive all moneys payable in respect of dilapidations as if they were the new incumbent of such

Extinction
of incum-
bencies and
other offices
of old
churches.

A.D. 1904. — church and sections 29 to 36 of the Ecclesiastical Dilapidations Act 1871 shall apply accordingly The trustees shall apply any moneys received by them under this section in executing repairs specified in the order made by the Bishop under the Ecclesiastical Dilapidations Act 1871 or to any of the purposes to which the proceeds of the sales of vicarages or residence houses are applicable under this Act.

Sale of vicarage houses of All Souls and Saint Titus.

12.—(1) As soon as conveniently may be after the making of an order under this Act for the closing and disuse of the church of All Souls or the church of Saint Titus the trustees shall with the consent of the Bishop sell the vicarage or house of residence of the church to which such order relates and the site thereof together with the outbuildings gardens and premises thereto belonging in one or more lots and in such manner at such times and on such terms and conditions as the trustees may think fit freed and discharged from all ecclesiastical and other trusts uses purposes obligations disabilities and restrictions whatsoever and from all rights or interests therein and may and shall execute and do all assurances acts and things necessary or proper for effecting the purposes aforesaid.

(2) Each assurance of land executed by the trustees under this section shall be registered in the Episcopal Registry of the diocese of Liverpool and shall be effectual without the concurrence or consent of any other person.

Merger of district of Vauxhall All Souls in district of Saint Bartholomew.

13.—(1) On and from the making of an order under this Act for the closing and disuse of the church of All Souls the ecclesiastical district now attached or assigned to the said church and known as the new parish of Vauxhall shall cease to be a separate ecclesiastical district and shall be united with and merged in the district of Saint Bartholomew in the city for all ecclesiastical purposes and shall form part of the benefice and cure of souls of the said district of Saint Bartholomew.

(2) From and after the merger aforesaid the Commissioners shall in lieu of seventy-five pounds part of the annual sum now paid by them to the incumbent of the church of All Souls pay the same amount to the incumbent of the church of Saint Bartholomew in all respects as if he were incumbent of the church of All Souls.

Merger of district of Saint Mark in adjacent parishes.

14. On and from the making of an order under this Act for the closing and disuse of the church of Saint Mark the ecclesiastical district now attached or assigned to the said church

shall cease to be a separate ecclesiastical district and so much of the said district as lies to the north of an imaginary line drawn along the middle of Upper Duke Street shall for all ecclesiastical purposes be united with and merged in the parish of Saint Luke constituted under this Act and so much of the said district as lies to the west of an imaginary line drawn along the middle of Great George Street shall for all ecclesiastical purposes be united with and merged in the parish of Saint Michael constituted under this Act and so much of the said district as lies to the east of the imaginary line last mentioned shall for all ecclesiastical purposes be united with and merged in the parish of Saint Bride otherwise Saint Bridgett constituted under this Act and each of the said parts of the said district so united and merged as aforesaid shall form part of the benefice and cure of souls of the parish with which it is united under this section :

A.D. 1904.

Provided that so much of the said district as has been acquired by the Liverpool Cathedral Committee under the Liverpool Cathedral Act 1902 as and for the site of the Cathedral Church of the diocese of Liverpool shall on the passing of this Act be and remain for all ecclesiastical purposes extra-parochial.

15.—(1) On and from the making of an order under this Act for the closing and disuse of the church of Saint Thomas the ecclesiastical district now attached or assigned to the said church shall cease to be a separate ecclesiastical district and shall for all ecclesiastical purposes be united with and merged in the parish of Saint Michael constituted under this Act and shall form part of the benefice and cure of souls of the said parish of Saint Michael.

Merger of district of Saint Thomas in parish of Saint Michael.

(2) From and after the merger aforesaid Queen Anne's Bounty shall in lieu of thirty pounds part of the annual sum applicable under section 10 of the Liverpool City Churches Act 1897 and Part III. of the Second Schedule to the said Act to the repair renewal and insurance of the said church of Saint Thomas pay yearly the same sum of thirty pounds to the incumbent of the said parish of Saint Michael and the said incumbent shall apply the said sum towards the stipend of an assistant curate year by year The receipt in writing of the incumbent of the said parish of Saint Michael for the said annual sum of thirty pounds shall be a good discharge to Queen Anne's Bounty for the same and Queen Anne's Bounty shall be under no liability to see to the application thereof.

A.D. 1904.

Merger of
district of
Saint Titus
in adjacent
parishes.

16.—(1) On and from the making of an order under this Act for the closing and disuse of the church of Saint Titus the ecclesiastical district now attached or assigned to the said church and known as the new parish of Saint Titus Liverpool shall cease to be a separate ecclesiastical district and so much of the said district as lies to the north of an imaginary line drawn along the middle of Hornby Street from its junction with Scotland Road to its junction with Vauxhall Road shall for all ecclesiastical purposes be united with and merged in the parish of Saint Martin constituted under this Act and so much of the said district as lies to the south of the said imaginary line and to the west of Vauxhall Road shall for all ecclesiastical purposes be united with and merged in the parish of Saint Alban Bevington in the city and each of the said parts of the said district so united and merged as aforesaid shall form part of the benefice and cure of souls of the parish with which it is united under this section.

(2) From and after the merger aforesaid the Commissioners shall in lieu of one hundred pounds part of the annual sum now paid by them to the incumbent of the church of Saint Titus pay the same amount to the incumbent of the church of Saint Alban aforesaid in like manner in all respects as the said annual sum has heretofore been paid to the incumbent of the church of Saint Titus and the said incumbent of the church of Saint Alban shall out of the moneys so paid to him apply thirty pounds towards the stipend of an assistant curate year by year.

Formation of
new parishes
and applica-
tion of pro-
ceeds of sales
of churches.

17.—(1) If and so soon as any sale shall have been completed under the section of this Act whereof the marginal note is “Closing and sale of certain churches” the trustees shall forthwith take all steps and use all endeavours in their power for the constitution within or near the city of a separate district for ecclesiastical purposes under the New Parishes Acts 1843 to 1884 and shall after payment of all expenses of and incident to such sale including any expenses of removal and re-interment of human remains and of removal and custody of monuments fittings furniture and documents apply the proceeds towards the purchase and laying out of a site for and the erection and completion (with all proper approaches fittings ornaments and conveniences) of a church in such district when constituted and the conveyance and consecration of such church or any of those purposes Provided that the trustees shall make no payment hereunder towards the erection or completion of any church of which the plans and specifications shall not have been first approved by the Bishop

and the Commissioners Provided also that if in any such district there shall be already a consecrated church the trustees shall apply any moneys which would otherwise have been applicable to the provision of a site or church for that district to the payment of any costs charges and expenses of the trustees duly incurred in the exercise of their office and thereafter to the building and provision of churches mission rooms and houses of residence for clergy in or near the city as the trustees shall with the consent of the Bishop determine. A.D. 1904.

(2) The name of such new district (if there shall not already be within the same a consecrated church) shall be that of the old church so sold as aforesaid (hereinafter called "the old church") unless the Bishop and the patrons of the old church shall decide otherwise.

(3) The incumbent (if any) of the old church shall without any presentation admission institution or induction or other process whatsoever become and be the first minister or incumbent of such new district.

(4) The right of patronage of such new district shall in the cases of All Souls and Saint Thomas be respectively assigned to and vested in the patrons of the old church in the case of Saint Mark shall for the first and every alternate turn be vested in the patrons of the old church and for the second and every other alternate turn in the Bishop and in the case of Saint Titus for the first and every succeeding turn be vested in the Bishop.

(5) Except as in this Act provided all endowments of or connected with the old church shall be by virtue of this Act transferred to the new district and until the constitution of such new district shall be applied as nearly as may be as heretofore. From and after the constitution of such new district the Commissioners and Queen Anne's Bounty respectively shall pay and apply any moneys which under the Liverpool City Churches Act 1897 they are required to pay and apply to any purpose in connection with the old church to the same purpose as nearly as may be in connection with the new district subject in the case of Saint Thomas to the annual payment of thirty pounds hereinbefore directed to be made by Queen Anne's Bounty to the incumbent of the said parish of Saint Michael Any difference as to the application of any moneys under this sub-section shall be finally determined by the Bishop.

A.D. 1904.

(6) This section shall apply with any necessary modification to the case of a new district constituted under the New Parishes Acts within or near the city in contemplation of the sale of any one of the old churches and before such sale.

(7) Notwithstanding anything in this Act the trustees may if they think fit defray all or part of the expenses of or incident to any sale (including as above mentioned) under the section of this Act whereof the marginal note is "Closing and sale of certain churches" out of the proceeds of any other such sale.

(8) The trustees may out of the proceeds of any sale in this section mentioned make any contribution which they may think fit towards the costs charges and expenses of and incident to preparing applying for and obtaining this Act.

Application
of proceeds
of sales of
vicarage
houses.

18. All moneys received by the trustees upon sales under this Act of vicarages or residence houses or premises thereto belonging shall after payment of all expenses of and incident to such sales be applied by them with the consent of the Bishop in the purchase of sites for or the erection of residence houses for clergy in parishes or districts hereafter to be constituted in or near the city or in existing parishes or districts in the city in which at the passing of this Act there shall be no such residence house and in payment of costs and expenses of and incident to such purchase and erection.

Sale of
churches
of Saint
Columba and
Saint Bar-
tholomew.

19.—(1) The Church Building Act 1845 shall be construed as authorising and extending to the substitution of new churches in and for the districts or parishes of Saint Columba and Saint Bartholomew for the existing churches of the districts in the city so named respectively.

(2) If and so soon as a new church shall have been substituted under the said Act for the existing church of Saint Columba or Saint Bartholomew respectively as the parish church of the parish so named respectively such existing church and the ornaments fittings and furniture thereof and the site thereof including vaults churchyard and other lands attached or belonging thereto shall become subject to an absolute power of sale by the trustees and the sections of this Act of which the marginal notes are respectively "Closing and sale of certain churches" and "Removal of human remains" shall apply to such church as if it were one of the old churches. Provided that before selling any ornaments fittings or furniture of either of the said existing churches the trustees shall apply to the Bishop for directions and

shall except from the sale and transfer to the church to be substituted for such existing church all such ornaments fittings and furniture as the Bishop may direct Provided also that all registers deeds records books and documents belonging to or kept in either of the said existing churches shall before the sale of such church be removed by the trustees to the church to be substituted for such existing church. A.D. 1904.

(3) The trustees shall apply the proceeds of any sale under this section after payment of all expenses of or incident to such sale including any expenses of removal or re-interment of human remains and of removal and custody of monuments fittings furniture and documents in defraying the cost of the new church substituted as herein-before mentioned or the purchase of the site therefor or towards the purchase of a site for or the erection of any new church within or near the city or to all or some of the said purposes as they may think fit and in payment of any costs and expenses incidental to the application of moneys under this section.

20.—(1) The Church Building Act 1845 shall be construed as authorising and extending to the substitution of a new church in and for the parish of Saint George in the borough of Wigan for the existing church of the said parish. Sale of church of Saint George Wigan.

(2) If and so soon as a new church shall have been substituted under the said Act for the said existing church as the parish church of the said parish the said existing church and the ornaments fittings and furniture thereof and the site thereof including vaults churchyard and other lands attached or belonging thereto shall become subject to an absolute power of sale by the trustees and the sections of this Act of which the marginal notes are respectively "Closing and sale of certain churches" and "Removal of human remains" shall apply to the said church as if it were one of the old churches Provided that before selling any ornaments fittings or furniture of the said existing church the trustees shall apply to the Bishop for directions and shall except from the sale and transfer to the church to be substituted for the said existing church all such ornaments fittings and furniture as the Bishop may direct Provided also that all registers deeds records books and documents belonging to or kept in the said existing church shall before the sale of the said church be removed by the trustees to the church to be substituted for the said existing church.

A.D. 1904.

(3) The trustees shall apply the proceeds of any sale under this section after payment of all expenses of or incident to such sale including any expenses of removal or re-interment of human remains and of removal and custody of monuments fittings furniture and documents in defraying the cost of the new church substituted as herein-before mentioned or the purchase of the site therefor or to any such ecclesiastical purposes within the parish of Saint George Wigan as the Bishop may by writing under his hand approve.

CONVERSION OF CONVENTIONAL DISTRICTS INTO PARISHES.

Conversion
of conven-
tional dis-
tricts into
parishes.

21. On and from the next avoidance of the rectory of Liverpool the conventional districts shall subject to the provisions of this Act become and be separate and distinct parishes for ecclesiastical purposes within the meaning and for the purposes of section 14 of the New Parishes Act 1856 and subject as aforesaid that section shall apply to each of such parishes accordingly:

Provided that—

- (1) If any dispute or difficulty shall arise concerning the metes and bounds of the ecclesiastical parish of Liverpool as modified by this Act or of any of the new parishes hereby constituted such dispute or difficulty shall be referred to the Commissioners who shall fix and declare the metes and bounds of such parishes and finally determine the same anything contained in any local or other Act in force at the time of the passing of this Act notwithstanding:
- (2) Nothing in this Act shall be taken to affect the right of the rector of Liverpool for the time being to any fees or other ecclesiastical dues arising within the limits of any of the conventional districts or payable in respect of the performance of marriages or other offices in any of the churches of the conventional districts until or before the date upon which by virtue of an Order in Council made in pursuance of the Liverpool Cathedral Act 1902 the chapel of Saint Nicholas shall be substituted for the church of Saint Peter as the parish church of Liverpool:
- (3) Section 19 of the New Parishes Act 1843 and section 13 of the New Parishes Act 1856 shall apply in the

same manner to the compensation from time to time of the rector of Liverpool and his successors for any diminution of fees dues or other emoluments caused or occasioned by this Act as if the said sections were incorporated with this Act. A.D. 1904.

22. Notwithstanding anything contained in this Act or in the New Parishes Act 1856 or in any Act in force at the time of the passing of this Act all sums of money in commutation of fees other than for services rendered payable in respect of any matter arising in any burial grounds for the time being attached to or used for the purpose of the ecclesiastical parish of Liverpool or any of the new parishes constituted under the last preceding section of this Act shall belong to and be payable to the said rector of Liverpool in the same manner and to the same extent as they would have been had the said conventional districts never been constituted new parishes and the benefice to the augmentation of which the residue of any such commutation moneys may be applied under the Burial Act 1900 shall be the rectory of Liverpool. Application of money in commutation of fees.

23. From and after the date when the said chapel of Saint Nicholas shall be substituted for the said church of Saint Peter as aforesaid the Commissioners shall pay yearly to the rector for the time being of the parish of Liverpool by way of augmentation of the emoluments of the rectory of Liverpool one moiety of the income of the sum of twenty-one thousand six hundred pounds mentioned in Part II. of the Second Schedule to the Liverpool City Churches Act 1897 notwithstanding the provisions contained in the said Act or schedule relating to the said sum of twenty-one thousand six hundred pounds which in so far as but no further than they are inconsistent with the provisions of this Act are hereby repealed. Provided that if the Commissioners within five years after the said date shall determine having regard to all the circumstances of the case including the insufficiency (if any) of any sums of money awarded under paragraph (3) of the proviso to the section of this Act of which the marginal note is "Conversion of conventional districts into parishes" to compensate the said rector for the loss of fees dues or other emoluments caused or occasioned by this Act and after hearing all parties interested that a less sum than the said moiety is a sufficient augmentation of the emoluments of the said rectory they shall pay yearly by way of such augmentation such lesser Provision for augmentation of emoluments of rectory of Liverpool.

A.D. 1904. — sum and no more and shall pay the residue of the said moiety to the rector of the said parish to be by him applied in or towards the maintenance of an assistant curate for the said parish of Liverpool.

As to patronage of new parishes.

24. Notwithstanding anything contained in the New Parishes Act 1856 or in this Act the patronage of the new parishes constituted under the section of this Act of which the marginal note is "Conversion of conventional districts into parishes" shall be vested in the persons and corporations respectively in whom the right of nomination or presentation of a minister to the corresponding conventional districts out of which the said new parishes were respectively formed was formerly vested.

Repeal.

25. The enactments mentioned in the Second Schedule to this Act shall as from the next avoidance of the rectory of Liverpool be repealed to the extent specified in the third column of that schedule :

Provided that—

- (1) Neither the repeal aforesaid nor anything in this Act shall affect any right existing at the passing of this Act to any seat or pew in any of the churches of the conventional districts nor any liability to make any payment in respect of any such seat or pew and all existing remedies means and powers for or incidental to the recovery of any such payment shall as from the date of the repeal aforesaid be vested in and exerciseable by the churchwardens of each of the said parishes respectively :
- (2) Notwithstanding the repeal aforesaid all endowments and emoluments other than pew rents at the passing of this Act appropriated to or enjoyed in connection with any of the churches of the said districts shall continue and be applied in like manner so far as possible after the said churches shall have become the churches of separate and distinct parishes :
- (3) Nothing in this Act shall until the next vacancy in the office of parish clerk of the parish of Liverpool prejudice or affect any rights of the said clerk to fees.

Pew rents.

26. The Bishop may by order under his hand declare that as from the date of the repeal aforesaid annual rents may be reserved and taken in respect of any pews or sittings in any of

the churches in the last preceding section mentioned and such rents shall be charged levied and taken by the churchwardens of such church after a rate or scale which shall be specified in such order and shall be applied in such manner as shall be specified in such order and the Bishop may in like manner amend or revoke any such order Provided that no such order shall be made in respect of any pews or sittings for which rents have not heretofore been reserved.

A.D. 1904.

MISCELLANEOUS.

27.—(1) From and after the next avoidance of the benefice of Christ Church it shall be lawful for the Bishop by order under his hand to appoint that the parish of Christ Church constituted under this Act shall cease to be a separate ecclesiastical parish and shall for all ecclesiastical purposes be united with and merged in the parish of Saint Stephen constituted under this Act and shall form part of the benefice and cure of souls of the said parish of Saint Stephen and all endowments of or connected with the said parish of Christ Church shall be transferred to the said parish of Saint Stephen Provided that no such order as in this sub-section mentioned shall be made except with the written consent of the patrons for the time being of the benefice of Christ Church.

Merger of parish of Christ Church in parish of Saint Stephen.

(2) From and after the merger aforesaid the church of the said parish of Christ Church shall be and be used as a chapel of ease of the said parish of Saint Stephen :

Provided that the endowments of the said parish of Saint Stephen after the merger aforesaid whether formerly belonging to the said parish or to the said parish of Christ Church shall be applied and allotted for the purposes of the said parish of Saint Stephen according to a scheme which the Commissioners shall with the consent of the Bishop make under their seal but no such scheme shall take effect as regards endowments belonging at the passing of this Act to the said parish of Saint Stephen until the next avoidance of the benefice thereof unless the incumbent and the patron of the said benefice shall have consented to such scheme.

(3) From and after the merger aforesaid the patronage and right of presentation to the incumbency of the parish of Saint Stephen shall vest in and be exercised alternately by such persons as would have been but for the passing of this Act patrons of Saint Stephen's Church and Christ Church respectively the patrons of Christ Church having the first turn.

A.D. 1904.

Assignment
of district to
church of
Saint Mary
Edgehill.

28.—(1) Notwithstanding anything contained in the Edgehill Church Act 1814 the Commissioners may under the Church Building Acts 1818 to 1884 or any, of them assign a district to the church of Saint Mary Edgehill in the city and the said Acts and the New Parishes Acts 1843 to 1884 shall so far as they are applicable apply to such district and the said church accordingly and any district so assigned shall forthwith become and be a separate and distinct parish for ecclesiastical purposes within the meaning and for the purposes of section 14 of the New Parishes Act 1856 and that section shall apply to such parish accordingly Provided that so long as the Reverend Andrew Wilson shall be incumbent of the said church of Saint Mary Edgehill no district shall be assigned to the said church under this Act without his written consent.

(2) On the passing of this Act the section of the Edgehill Church Act 1814 whereof the marginal note is "Double fees to be paid to the minister" shall be repealed.

(3) Nothing in this section shall prejudice or affect any right to any seat pew or other thing acquired under the Edgehill Church Act 1814.

As to certain
fees in con-
nection with
church of
Saint James
Toxteth
Park.

29. From and after the passing of this Act no fees or portions of fees for or arising from the solemnization or performance of marriages baptisms churchings burials or other offices in the church of Saint James Toxteth Park in the city shall be payable to the rector of the parish of Walton-on-the-Hill any statute or order notwithstanding.

Interpretation
of section 9 of
Liverpool City
Churches Act
1897.

30. For the purposes of section 9 of the Liverpool City Churches Act 1897 a payment towards the cost of the purchase of a site for a new church shall be deemed to be a payment towards the building or endowment of such new church.

As to Saint
David's
Church.

31.—(1) On and from the next avoidance of the rectory of Liverpool the ecclesiastical district now attached or assigned to the church of Saint David in the city (the site of the said church only excepted) shall cease to be a separate ecclesiastical district and shall be united with and merged in the parish of Saint Simon in the city for all ecclesiastical purposes and shall form part of the benefice and cure of souls of the said parish of Saint Simon.

(2) Save as aforesaid the said church of Saint David shall remain and be a cure and benefice as heretofore.

(3) From and after the merger aforesaid section 7 of the Church Building Act 1845 shall apply with any necessary modifi-

cations to the said church of Saint David and the appointment of churchwardens therefor. A.D. 1904.

(4) Notwithstanding anything contained in the Saint David's Church Act 1826 the minister or incumbent of the said church shall not be obliged to perform any service therein except in the Welsh language nor shall he solemnize matrimony therein except in the Welsh language.

(5) On and from the next avoidance of the rectory of Liverpool the section of the Saint David's Church Act 1826 whereof the marginal note is "Fees" shall be read and construed as if the word "double" had been omitted therefrom and as if the words "and that the minister of the said intended church" to the end of the section had also been omitted therefrom.

(6) It shall be the duty of the incumbent of the said church so far as he lawfully may to visit and minister to all persons in the city who may need or desire the ministrations of the church in the Welsh language.

(7) It shall be lawful for the Bishop if he shall think fit to refuse institution or licence to any spiritual person to minister as incumbent curate or assistant curate in the said church who after due examination and inquiry shall be found unable to preach and administer the sacraments perform other pastoral duties and converse in the Welsh language. Provided that any such person may within one month after such refusal appeal to the Archbishop of York who shall either confirm such refusal or direct the Bishop to grant institution or licence as shall seem to the said Archbishop just and proper.

(8) If at any time hereafter there shall be a church in the city without a district attached or assigned to it which in the opinion of the Bishop may be conveniently substituted for the said church of Saint David as a church in which Welsh services may be performed as provided by the Saint David's Church Act 1826 and this Act it shall be lawful for the Bishop to make an order under his hand for the closing and disuse of the said church of Saint David and thereupon all the provisions of this Act relating to the closing and sale of the old churches shall so far as possible apply to the said church of Saint David and the trustees shall apply the proceeds of the sale thereof and of all lands and things sold in connection therewith towards the purchase of a site for or the erection of any new church within the city or to any purpose of a like nature which the Bishop may by writing under his hand authorise and such other church

A.D. 1904. — as aforesaid shall by virtue of this Act be substituted for the said church of Saint David for all purposes whatsoever and all endowments emoluments rights and powers theretofore enjoyed or exercised in connection with the said church of Saint David shall be transferred and annexed to such substituted church.

Condition on sales of churches.

32. Every sale under this Act of a church not already demolished shall be and be taken to be upon the condition that the purchaser shall within three months from the completion of such sale wholly demolish such church and on breach of the said condition such sale shall be void and any moneys paid in respect thereof shall be forfeited.

Monuments &c.

33. Save as by this Act provided all monuments tombstones and monumental inscriptions in any church closed under the powers of this Act shall upon the closing thereof be removed by the trustees and preserved in such manner as the Bishop may by writing under his hand direct.

Patronage of church of Holy Innocents.

34. It is hereby declared and enacted that the advowson or right of patronage and presentation of or to the church or chapel of the Holy Innocents in the city is vested in the Bishop and his successors in right of his See absolutely.

Saving for recovery of pew rents &c.

35. Notwithstanding the closing of any church under the powers of this Act all pew rents fees and other sums outstanding at the date of such closing shall be recoverable in like manner and with the like powers and remedies as if this Act had not been passed.

Saving for patrons and rector of parish church of Liverpool.

36. Except as by this Act otherwise specially provided nothing in this Act contained shall be held or construed to prejudice diminish alter or affect any of the rights privileges powers or authorities of the patron or patrons or of the rector for the time being of the parish or parish churches of Liverpool.

Saving for parochial charities.

37. Nothing in this Act shall extend restrict or alter the scope and application of the benefits of any parochial charity.

The SCHEDULES referred to in the foregoing Act. A.D. 1904.

THE FIRST SCHEDULE.

PART I.

DESCRIPTION OF CHURCHES.

A piece or parcel of land situate and being on the north side of Eaton All Souls.
Street in the city of Liverpool having a frontage thereto of seventy-eight feet
or thereabouts and containing in the whole one thousand one hundred and
ninety-six square yards or thereabouts Together with the building thereon
or on some part thereof erected being the church of All Souls Vauxhall
Liverpool.

A piece or parcel of land situate and being on the north side of Upper Saint Mark.
Duke Street in the city of Liverpool containing in the whole two thousand
six hundred and four square yards or thereabouts Together with the building
thereon or on some part thereof erected being the church of Saint Mark
Liverpool.

A piece or parcel of land in the city of Liverpool bounded on the north Saint Thomas.
by the road or street called Cleveland Square on the east by Paradise Street
on the west by Park Lane and on the south side by a garden or ornamental
ground formerly a burial ground and containing in the whole seven hundred
and fifty square yards or thereabouts Together with the building thereon
erected being the church of Saint Thomas Liverpool and together with all
rights of way in over and upon the way or path on the south side of the said
church through the said garden or ornamental ground and all other ways and
rights of way or access to the said church and all lights and rights of air and
light drains sewers and right of drainage now used and enjoyed as belonging
to the said church.

A piece or parcel of land situate on the south side of Portland Street in Saint Titus.
the city of Liverpool and containing in the whole six hundred and fifty-seven
square yards or thereabouts Together with the building thereon or on some
part thereof erected being the church of Saint Titus Liverpool.

PART II.

DESCRIPTION OF VICARAGE HOUSES.

A piece or parcel of land situate on the west side of Shaw Street in the All Souls.
city of Liverpool having a frontage thereto of twenty-seven feet or there-
abouts and containing in the whole four hundred square yards or thereabouts
Together with the messuage or dwelling-house and outbuildings thereon or on
some part thereof erected being No. 3 Shaw Street aforesaid and the house
of residence of the benefice of All Souls Vauxhall.

A.D. 1904.
Saint Titus.

A piece or parcel of land on the north-west side of Saint Domingo Grove in the city of Liverpool containing five hundred and six square yards or thereabouts Together with the messuage or dwelling-house and outbuildings thereon or on some part thereof erected being No. 29 Saint Domingo Grove aforesaid and the house of residence of the benefice of Saint Titus Liverpool.

THE SECOND SCHEDULE.

LOCAL ENACTMENTS REPEALED.

Session and Chapter.	Title.	Extent of Repeal.
12 Geo. 3. c. 36.	An Act for completing a building intended for a new church or chapel at Richmond near Everton in the County Palatine of Lancaster and for other purposes.	The whole Act.
39 & 40 Geo. 3. c. 106.	An Act for establishing a new church or chapel lately erected on the south side of Hunter Street within the town and parish of Liverpool in the County Palatine of Lancaster.	The whole Act except sections 7 and 17 so far as they affect any existing rights or interests in the cemetery churchyard and vaults therein mentioned.
3 Geo. 4. c. 19.	An Act for erecting and endowing a church in the town of Liverpool in the County Palatine of Lancaster to be called Saint Luke's Church and for reviving and amending an Act of the twenty-first year of King George the Second so far as relates to Saint Thomas's Church.	The whole Act.
4 Geo. 4. c. 89.	An Act to repeal an Act passed in the fifty-fourth year of His late Majesty for building a new church within the town and parish of Liverpool in the County Palatine of Lancaster to vest the said church and the ground thereunto belonging in the Mayor Bailiffs and Burgesses of the town of Liverpool to authorize the purchase of land in the said town to be appropriated to the use of public cemeteries and to restrict the burial of corpses in the present cemeteries of the parish church and parochial chapel there.	The whole Act.

SECOND SCHEDULE—*continued.*

A.D. 1904.

Session and Chapter.	Title.	Extent of Repeal.
10 Geo. 4. c. 11.	An Act for vesting a new church in the parish of Liverpool in the county of Lancaster in the Mayor Bailiffs and Burgesses of the said town and for authorizing the appointment of districts for the better performance of ecclesiastical duties within the said parish.	The whole Act except Sections 24 25 and 30.
10 Geo. 4. c. 51.	An Act for erecting and endowing a church in Abercrombie Square in the parish of Liverpool in the County Palatine of Lancaster.	The whole Act.
1 & 2 Will. 4. c. 49.	An Act for endowing a church called Saint Bridgett in the parish of Liverpool in the County Palatine of Lancaster.	The whole Act.
2 & 3 Vict. c. 33.	An Act for altering and amending certain Acts relating to the churches of Saint Mark Saint Luke and Saint Michael in the borough of Liverpool.	The whole Act.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C.; or
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